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|   |             | <p>incomprehensible that a defendant cannot reasonably respond.” (<i>Lickiss v. Financial Industry Regulatory Authority</i> (2012) 208 Cal.App.4th 1125, 1135 [agreeing that “demurrers for uncertainty are disfavored”].) They are strictly construed “because ambiguities can be clarified under modern discovery procedures.” (<i>Khoury v. Maly’s of California, Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Defendants’ memorandum reflects a detailed understanding of the claim.</p> <p>Defendants shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 4 | Li vs. Shen | <p>The court <b>GRANTS</b> Plaintiff Hong Li’s motion for leave to file a proposed second amended complaint.  </p> <p><u>Standard on Motions for Leave to Amend</u>  </p> <p>Civil Procedure Code Section 473(a)(1) provides that “[t]he court may . . . in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading . . . .” The court’s discretion will usually be exercised liberally to permit amendment of the pleadings. (<i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428.)  </p> <p><u>Procedural Requirements</u>  </p> <p>A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; and (2) state what allegations in the previous pleading are proposed to be deleted/added, if any, and where, by page, paragraph, and line number, the deleted/additional allegations are located. (Cal. Rules of Ct., Rule 3.1324(a).) The motion must also be supported by a declaration that specifies: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Ct., Rule 3.1324(b).)  </p> <p>Here, Plaintiff complied with the procedural requirements of Rule 3.1324. (See Deng Decl. ¶¶ 2-8, Exs. A-B.)  </p> <p><u>Proposed SAC</u>  </p> <p>The Proposed SAC adds Decedent’s two wrongful death heirs as Proposed Plaintiffs, deletes reference to dismissed defendants; and deletes dismissed causes of action. Plaintiff Li submits sufficient evidence to show the proposed plaintiffs consent to being joined as party plaintiffs. (See Deng Decl. ¶¶ 8-9.)  </p> |